

HOUSE BILL 679

By Freeman

AN ACT to amend Tennessee Code Annotated, Title 29;
Title 38 and Title 39, relative to sexual assault.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-13-118(d), is amended by deleting "one thousand dollars (\$1,000)" and substituting "two thousand five hundred dollars (\$2,500)".

SECTION 2. Tennessee Code Annotated, Section 38-6-113, is amended by deleting subsection (e) and substituting:

(e)

(1) The bureau shall perform serology or DNA analysis on a sexual assault evidence collection kit within one hundred twenty (120) days of the bureau's receipt of the sexual assault evidence collection kit from a law enforcement agency.

(2)

(A) If the bureau is unable to perform serology or DNA analysis on a sexual assault evidence collection kit within one hundred twenty (120) days pursuant to subdivision (e)(1), then the bureau shall flag the sexual assault evidence collection kit in the electronic tracking system and provide the submitting law enforcement agency with a written explanation for the delay in analysis.

(B) A sexual assault evidence collection kit that has been flagged pursuant to subdivision (e)(2)(A) must be analyzed within a reasonable time thereafter.

(3) As used in this section, "sexual assault evidence collection kit" has the same meaning as defined in § 39-13-519.

(4) The bureau's inability to perform serology or DNA analysis on a sexual assault evidence collection kit within the timeframe required by subdivision (e)(1) does not limit the admissibility of evidence obtained from the sexual assault evidence collection kit and is not a ground for challenging the validity of any analysis performed by the bureau of evidence obtained from the sexual assault evidence collection kit.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it. Section 1 of this act applies to claims for compensation for forensic medical examinations performed on or after July 1, 2025. Section 2 of this act applies to sexual assault evidence collection kits received by the Tennessee bureau of investigation on or after July 1, 2025.